

XII. Administrative Procedures – Confidentiality		PROCEDURE 12.019 Implementing Office: Community Health Administration (CHA) Created September 2019
Approved by: _____ LaQuandra S. Nesbitt MD, MPH; Agency Director	Review by Legal Counsel: _____ Phillip Husband, Esq.; General Counsel	Effective Date: 01/01/2020

I. Authority	USDA
II. Reason for the Policy	To ensure compliance with Federal Regulations and to protect the right to privacy of WIC applicants and participants. FNS Instructions 800-1 - WIC Program - General Administration-Confidentiality SPF 90-008 Confidentiality Issues SPF 90-076 Confidentiality Instructions (not able to locate) SPF 93-040 Procedures for Responding to a Subpoena SPF 94-070 Responding to Subpoena and Search Warrants in the WIC Program 6. SFP 93-086, WIC Volunteers and Confidentiality SPF 95-010 Sharing WIC Data and Information with State/Local Immunization Programs Policy Memo 93-2 WIC Volunteers and Confidentiality (not able to locate) SP 42-2014 - Sharing Aggregate Data to Expand Program Access and Services in Child Nutrition Programs CFR § 246.26 Other provisions (d) Confidentiality of applicant and participant information CFR § 246.9 - Fair hearing procedures for participants.
III. Applicability	DC WIC State Agency and Local Agency Staff
IV. Policy Statement	Confidentiality is the protection of information regarding an applicant or participant, whether it is obtained from the applicant or participant, another source, or generated as a result of WIC application, certification, or participation, that individually identifies an applicant or participant and/or family member. Participant information must remain confidential to ensure compliance with Federal Regulations, to protect the right to privacy of WIC applicants/participants, to allow clients access to their own records, and to protect the interests of society by permitting disclosure without client consent in limited situations, such as suspected

	child abuse, medical emergencies, communicable disease control, investigation of program violations, and program evaluations. Confidentiality requirements apply to information provided by an applicant/participant that is based on direct observation by WIC personnel.
V. Guidance Regarding Confidentiality	DISCLOSING INFORMATION FOR WIC PURPOSES <u>A. Administration or Enforcement of the WIC Program</u> The disclosure of WIC applicant/participant information is limited to persons directly connected with the administration or enforcement of WIC. These include: 1. WIC personnel, managers and administrators at the State and local level who are responsible for the ongoing conduct of Program operations. The WIC personnel must sign a Statement of Confidentiality form agreeing to provide WIC services in a manner that maintains client confidentiality (see Appendix 3.001B) 2. Personnel under contract with the State Agency to perform research regarding the WIC program or to conduct ongoing WIC program operations and who are trained and knowledgeable of the restriction on disclosure of information 3. Persons investigating or prosecuting violations in the WIC Program under Federal, State or local authority 4. Interns or volunteers who are responsible for the ongoing conduct of Program operations and who are trained and knowledgeable of the restriction on disclosure of information 5. The comptroller general of the United States for audit and examination authorized by law <u>B. Release of Information to the WIC Applicant/Participant or Parent/Guardian</u> 1. Each local agency (LA) is responsible for restricting the use and disclosure of information obtained from program applicants/participants. The LA shall provide a copy of the applicant or participant record free of charge to the applicant or participant or the parent or guardian of an applicant or participant. 2. A WIC applicant/participant or the authorized representative of an infant or child applicant/participant may request access to see or copy his/her own record or a copy of a child's or infant's record 3. Assuming that any issues regarding custody or guardianship have been settled, such persons have the right of access to the following information: a. All information provided by the applicant/participant

	b. The health record (forms completed by WIC personnel or health care providers for medical/nutrition risk assessment for determination of Program eligibility) Note: <i>The Local Agency need not grant the participant/participant or authorized representative access to any other information in the record, such as documentation of income provided by third parties or any information which serves as a staff assessment of the participant's condition or behavior, unless required by State or local law or policy or unless the information supports a State or local agency decision being appealed pursuant to CFR § 246.9 - Fair hearing procedures for participants.</i> 4. The requested information may be given directly to the applicant/participant or authorized representative, or to their representative (i.e. physician or lawyer) with a signed release 5. A Consent for Release of Participant Information form (see appendix 12.019A) will be completed for the participant's chart when information is given to the applicant/participant or authorized representative, or their representative. WIC personnel releasing the information and the person receiving the information will sign the form. <u>C. WIC Applicant/Participant Request for Release of Information to a Third Party</u> Third Party data requests can be initiated by the WIC applicant/participant him/herself or by staff to a third party or organization that is not indicated on the Participant Rights & Responsibility Signature form. Consent must be based on a full understanding of what information will be exchanged, with whom it will be shared, and how it will be used. 1. WIC Applicant/Participant Third Party Request An applicant/participant must submit a written consent form (see 2.018 A) to the Local Agency for the release of information to be sent to a specific third party or organization, i.e. doctor. 2. WIC Staff Third Party Request Except in the case of subpoenas or search warrants, the State Agency and its local agencies may disclose confidential applicant and participant information to individuals or entities only if the affected applicant or participant signs a release form authorizing the disclosure and specifying the parties to which the information may be disclosed. 3. Medical Emergency In the event of a medical emergency, local WIC programs may disclose medical/clinical information to medical personnel without participant consent, but only to the extent necessary to meet the medical emergency such as a severe injury, unconsciousness, delirium, diabetic client in insulin shock, etc.
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	a. The information disclosed should only be that necessary to assess and/or treat the emergency. b. Ensure that the party requesting information (e.g. hospital emergency room) is a legitimate caller by verifying name and phone number. 4. Danger to Society Local program staff may lawfully report participant's confidential information to law enforcement officials when necessary to protect health or safety in an emergency, for example, if there is reason to believe that an individual may be dangerous to her or himself or to others. In all other circumstances, information should not be released to law enforcement officials without presentation of a subpoena. DISCLOSING INFORMATION FOR NON-WIC PURPOSES <u>A. Release of Information to Private Physicians or other Healthcare Providers</u> Release forms authorizing disclosure to private physicians or other healthcare providers is included as part of the WIC application or certification process. All other requests for applicant and participants to sign voluntary release forms shall occur after the application and certification process is completed. In accordance with § 246.26(d)(4), the State or local agency must permit applicants and participants to refuse to sign the release form and must notify the applicants and participants that signing the form is not a condition of eligibility and refusing to sign the form will not affect the applicant's or participant's application or participation in the WIC Program. <u>B. WIC Program Written Agreement with a Health or Welfare Program</u> The State agency and its local agencies may disclose confidential applicant and participant information for use in its programs or to other public organizations for use in the administration of their programs that serve persons eligible for the WIC Program. The purpose of the release of information is to facilitate a WIC client's entry into other healthcare and social services programs that would assist and benefit the individual. If this sharing of data with programs within the Local Agency or with health or welfare program is routinely requested, the State Agency must enter into a written agreement. 1. The agreement specifies that the receiving program use WIC Program information only for the purpose of a. Establishing the eligibility of WIC applicants/participants for the program which it administers b. Conducting outreach to WIC applicants/participants for the other program(s) c. Enhancing the health, education, or well-being of WIC applicants/participants who are currently enrolled in such
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	programs, including the reporting of known or suspected child abuse that is not otherwise required by State law; d. Streamlining administrative procedures in order to minimize burdens on staff, applicants, or participants in either the receiving program or the IWC program; and, or e. Assessing and evaluating the responsiveness of a State's health care needs and health care outcomes. 2. The agreement contains the receiving program's assurance that it will not disclose the information to a third party. <u>C. Requested Data in Aggregate or Summary Form</u> Requested data in aggregate or summary form that excludes any items which would identify WIC Program applicants/participants may be granted upon approval by the State Agency. Aggregate data may be disclosed to persons engaged in scientific research, program evaluation, peer review, quality assurance, disease prevention, abuse fatality review, fiscal audits, etc. Before releasing information for research, etc. local agencies must contact the State agency to discuss the nature of data to be disclosed and the validity of the request for disclosure. <u>D. Release of Information to other State WIC Agencies</u> The State Agency and/or Local Agency may release information to WIC agencies in other states for certification verification for the transfer of participants without a written authorization from the participant and/or to prevent and detect dual participation. The communication method(s) should permit the expedient release of information. 1. Local Agency staff may give information via telephone, fax, or mail as requested by the other State without a release signed by the WIC participant after eliminating any doubt that it is not a WIC agency representative that is calling by documenting the name and phone/fax number of the person requesting the information and returning a call to the requesting agency prior to releasing the information if there is any doubt that it is not a WIC agency. Information provided will be limited and must be pertinent (i.e., information contained on the VOC card). 2. Local Agency staff will terminate the WIC participant in CARES when such information is received from the requesting State WIC agency. 3. Upon detection of dual participation, the WIC participant will be terminated from one (1) WIC clinic.
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	<u>E. Release of Information to Child Protective Services</u> The District of Columbia encourages a person who knows about, or has reason to suspect, child abuse or neglect report such information to the Child and Family Services Agency (CFSA) at (202) 671-SAFE or (202) 671-7233, whether the information is reported by a WIC applicant/participant or is observed by WIC personnel who may remain anonymous. The reporting of such information does not necessitate the consent of the participant or applicant to the extent necessary to comply with such law. 1. Requests for information from Child and Family Services Agency (CFSA) pertaining to an investigation of suspected abuse or neglect which was reported by WIC personnel to Child Protective Services may be provided by WIC personnel. 2. Release of participant information to Child and Family Services Agency (CFSA) must be evaluated on a case by case basis. Contact the State Agency immediately upon receipt of a request, for guidance. <u>F. Release of Data During Program Evaluations</u> State and local WIC agencies and contractors must cooperate in studies and evaluations conducted by or on behalf of the Department, related to programs authorized under the Richard B. Russell National School Lunch Act and the Child Nutrition Act of 1966 (42 U.S.C. 1786). <u>G. Request for Information Requiring Legal Counsel Assistance</u> In the following circumstances, the Local Agency shall contact the State WIC Agency immediately upon receipt of a request for information by sending an e-mail to info.wic@dc.gov. If a local agency does not have access to a legal counsel, the local agency may need to seek legal advice on such issues from the WIC State's Agency legal counsel. <i>a. Requests for information made by a third party, such as Child and Family Services Agency (CFSA), which might substantiate allegations of child abuse</i> <i>b. Receipt of a court ordered subpoena for information:</i> A subpoena is merely a request for information issued by the clerk of a court in response to a request by an attorney representing a party. A Subpoena does NOT represent a court's ruling that a WIC State or local agency MUST release the information requested. However, a subpoena could potentially result in the State or local agency being found in contempt of court which could result in the incarceration of or fines against WIC employees. In responding to a subpoena, the Local Agency shall follow the following guidelines:
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	(i) Consult with legal counsel at its own agency to determine whether the information requested is in fact confidential and prohibited from release as stated in the subpoena under 7 CFR 246.26 (d) of the WIC Program regulations, any pertinent State laws, FNS Instruction 800-1, and Policy Memorandum 94-3. (ii) LA must make a determination based on the content of the subpoena and the requested information whether or not to comply with the subpoena. If replying, LAs will inform the requestor of the WIC confidentiality provisions and request a signed client release from the requestor (iii) Inform the court or the receiving party that the provided information is confidential under federal regulations and limit (1) the provision of information to the specific information requested in the subpoena and (2) public access to the disclosed information to the greatest extend possible. (iv) Comply with LA policies governing subpoenas, unless the local policies conflict with State agency policies. <i>c. Receipt of a court ordered search warrant for information.</i> Search warrants are used by police investigators to obtain WIC applicant and participant information. State and Local agencies MUST comply with search warrants providing ONLY the specific information requested (no other information) involving the legal counsel of the respective agency. A copy of the search warrant must be kept on file. Failure to fully comply with a search warrant at the time it is served could result in the immediate incarceration of WIC State or local agency staff. The individual(s) producing a search warrant should be apprised of the confidential nature of WIC information. In responding to a search warrant, the Local Agency shall follow the following guidelines: (i) Immediately notify legal counsel for the LA and comply with any LA protocol concerning search warrants. (ii) Comply with the search warrant. (iii) Inform the individuals serving the warrant that the information being sought is confidential and limit (1) the provision of information to the specific information requested in the subpoena and (2) public access to the disclosed information to the greatest extend possible. <i>d. Freedom of Information Act Request (FOIA)</i> It is the public policy of the District of Columbia that all persons are entitled to full and complete information regarding the affairs of the government and the official acts of those who represent them as public officials and
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	employees. At all other times, applicant/participant information and their whereabouts shall be kept confidential. (ii) WIC staff may discuss applicant/participant information with other WIC staff as appropriate. Discussion shall take place in private areas where the information cannot be overheard by other participants, staff from other programs, or the general public. (iii) WIC staff shall ensure that a professional attitude is maintained at all times about applicant/participant information. This includes respecting the applicant/participant's privacy and maintaining respect for the dignity of the applicant/participant at all times.
VI. Appendix	12.019A Consent for Release of Participant Information
VII. Reference	N/A